法學英文主題整理：證券交易法（Securities Law）

> 涵蓋 104-114 年司律一試法學英文考古題，依主題分類彙整詞彙、中英對照與考古題原文。

一、核心詞彙與中英對照

英文	中文	出題年度
securities	有價證券	106
equity security	權益證券	106
matched orders	相對委託	104
wash sale	沖洗交易	106
market manipulation	操縱市場	104、106
tender offer	公開收購	111
short swing (transactions)	短線交易（歸入權）	112
prospectus	公開說明書	113
private placement	私募	114
IPO (Initial Public Offering)	首次公開發行	110
underwriter	承銷商	105
FSC (Financial Supervisory Commission)	金融監督管理委員會	110
proxy solicitation	委託書徵求	111
treasury stock	庫藏股	111
convertible debenture	可轉換公司債	106
corporate bond with warrants	附認股權公司債	106

Taiwan depositary receipt	臺灣存託憑證	106
commercial paper	商業本票（非有價證券）	106
front running	搶先交易	104
short sale	融券放空	104

二、重要例句與考古題解析

1. 有價證券定義（Securities Definition）

> **106 年第 60 題**
> Under Securities Exchange Act, transactions involving securities are subject to registration, mandatory disclosure, and heightened antifraud rules. Please identify which of the following is NOT a security in Taiwan.
> (A) A Taiwan depositary receipt (B) A convertible debenture
> (C) A foreign corporate bond (D) A commercial paper
> → 答案：(D)

> **106 年第 61 題**
> Under Securities Exchange Act, transactions involving securities are subject to registration, mandatory disclosure, and heightened antifraud rules. Please identify which of the following is NOT an equity security in Taiwan.
> (A) A convertible corporate bond (B) A corporate bond with warrants
> (C) A debenture (D) A treasury stock
> → 答案：(C)

考點提示：

- 106 年連續兩題考有價證券定義。(D) **commercial paper**（商業本票）不屬於證交法上之有價證券。
- **equity security**（權益證券）：具有轉換為股權之可能。(C) debenture（普通公司債）無轉換權，非權益證券。
- (A) convertible corporate bond（可轉換公司債）和 (B) corporate bond with warrants（附認股權公司債）均可轉換為股權。

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2. 市場操縱（Market Manipulation）

104 年第 61 題

A market manipulation claim can be based on ___ that are entered with the knowledge that sales of substantially the same size, at substantially the same time and price, have been entered by the wrongdoers for the sale of such security.

(A) wash sales (B) matched orders

(C) front running (D) short sales

→ 答案：**(B)**

106 年第 63 題

A ___ is a pretended sale made openly in the trading place for the purpose of deceiving other traders. Such manipulative practice is employed to give false appearance and to cause prices to be registered which are not true prices.

(A) Tender Offer (B) Short Sale

(C) Wash Sale (D) Short Swing

→ 答案：**(C)**

考點提示：

- 市場操縱行為兩大類型（證交法§155）：
  - **matched orders**（相對委託）：事先約定以相同數量、價格、時間為相對買賣，製造交易假象。
  - **wash sale**（沖洗交易）：同一人同時買賣同一證券，虛偽交易製造假成交量。
- 干擾選項辨識：front running（搶先交易）= 利用客戶訂單資訊搶先交易；short sale（融券放空）= 借券賣出。

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3. 公開收購（Tender Offer）

111 年第 63 題

___ is a public offer to stockholders of a listed company to exchange their shares for cash or securities bypassing the centralized securities exchange market or the over-the-counter market.

(A) Public issuing (B) Treasury stock

(C) Tender offer (D) Proxy solicitation

→ 答案：**(C)**

考點提示：

- **tender offer**（公開收購）：繞過集中交易市場或店頭市場，直接向已上市公司股東公開出價收購持股。
- 干擾選項：(B) treasury stock（庫藏股）= 公司買回自己股份；(D) proxy solicitation（委託書徵求）= 徵求股東出席投票之委託書。

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4. 短線交易歸入（Short Swing Transactions）

112 年第 68 題

In the event that any director, supervisor, managerial officer or shareholder holding more than 10% shares of a company sells the listed shares within six months after its acquisition, the company shall recover from such persons any profits made in the ___ transactions.

(A) short selling (B) short swing

(C) false trading (D) insider trading

→ 答案：**(B)**

考點提示：

- **short swing transactions**（短線交易）：公司內部人於六個月內買進賣出（或賣出買進）公司股票所獲利益，公司得請求歸入。證交法§157。
- 適用對象：董事、監察人、經理人、持股超過 10% 之股東。
- (A) short selling（融券放空）及 (D) insider trading（內線交易）為不同概念。

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5. 公開說明書（Prospectus）

113 年第 63 題

The term ___ as used in Taiwan's Securities and Exchange Act means an explanatory written statement that an issuer provides to the general public for the purpose of offering or selling securities.

(A) warranty (B) proxy statement

(C) representation (D) prospectus

→ 答案：**(D)**

考點提示：

- **prospectus**（公開說明書）：發行人為公開發行或銷售有價證券，向大眾提供之書面說明文件。
- (B) proxy statement（委託書說明書）用於徵求委託書，非發行有價證券。

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6. 私募（Private Placement）

114 年第 61 題

When a corporate issuer wishes to raise money and to offer the securities only to professional investors, such as insurance companies or pension funds, etc., outside of a public offering, we call this offering as ___.

(A) gun-jumping (B) private placement

(C) public issuance (D) spin-off

→ 答案：**(B)**

考點提示：

- **private placement**（私募）：僅向專業投資人（保險公司、退休基金等）發行，不經公開發行程序。
- (A) gun-jumping（搶跑）= 在 IPO 核准前即提前宣傳的違法行為。
- 私募 vs. 公開發行之區別：對象（特定 vs. 不特定）、程序（免申報 vs. 須申報）。

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7. IPO 主管機關（IPO Filing Authority）

110 年第 60 題

ABC Co. plans to arrange for an initial public offering ("IPO") of its shares, and it understands that it needs to file its IPO with a competent authority. Which authority should ABC Co. submit this filing?

(A) Ministry of Economic Affairs (B) Taiwan Stock Exchange

(C) Taipei Exchange (D) Financial Supervisory Commission

→ 答案：**(D)**

考點提示：

- IPO 申報機關為**金融監督管理委員會 (FSC)**，非經濟部或證交所。
- (B) Taiwan Stock Exchange（臺灣證券交易所）及 (C) Taipei Exchange（櫃檯買賣中心）為交易場所，非主管機關。

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8. 承銷商（Underwriter）

105 年第 68 題

Under the firm commitment agreement with the issuer, ___ may subscribe to securities before placing them for sale or may reserve certain portion of the securities specified in the agreement for subscription for his own account.

(A) Broker (B) Underwriter

(C) Dealer (D) Trustee

→ 答案：**(B)**

考點提示：

- **underwriter**（承銷商）：在包銷（firm commitment）契約下，承銷商得先認購證券再轉售，並得保留一定比例自行認購。
- 與 broker（經紀商，代客買賣）、dealer（自營商，自行買賣）之區別。

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9. 證券法功能（Function of Securities Law）

107 年第 62 題

Which of the following statements best describes the function or purpose of securities law?

(A) Helping companies grow by putting various restrictions on them

(B) Allowing companies to raise money from those whom they do not know much about

(C) Checking companies' activities ex-ante as well as ex-post to avoid corporate misconduct

(D) Encouraging investors to take due risk and enjoy economic growth

→ 答案：**(C)**

考點提示：

- 證券法功能：**事前（ex-ante）及事後（ex-post）**監督公司活動，防止公司不當行為。
- (B) 描述的是「資本市場功能」而非「證券法功能」。

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10. 證券法與公司治理（Securities Law & Corporate Governance）

111 年第 62 題

Securities law intervenes in corporate governance in several ways. From the example of Taiwan's securities law, which of the following does not reflect this intervention?

(A) Companies cannot solicit and receive proxy from shareholders freely.

(B) Companies need to make a public financial disclosure every season or year.

(C) A certain number of independent directors are required for newly listed companies.

(D) When issuing new stock, participating underwriters need to have licenses, meet strict qualifications, and cannot be bypassed.

→ 答案：**(D)**

考點提示：

- 證券法介入公司治理之方式：委託書徵求規範(A)、定期財務揭露(B)、獨立董事要求(C)。
- (D) 承銷商資格要求屬**市場監管**範疇，非公司治理介入。

三、一試重點提示

1. **有價證券定義**：106 年連續兩題考定義，commercial paper（商業本票）非證交法上有價證券；普通公司債（debenture）非權益證券。
2. **市場操縱**（matched orders / wash sale）：104、106 年各考一次，為高頻主題。注意兩者差異：相對委託 = 多人通謀；沖洗交易 = 一人虛偽買賣。
3. **短線交易歸入**（short swing）：證交法§157，六個月內反向交易之利益歸入，與 insider trading（內線交易§157-1）區辨。
4. **公開說明書 vs. 委託書**（prospectus vs. proxy statement）：前者用於發行證券，後者用於徵求投票委託。
5. **私募 vs. 公開發行**（private placement vs. public offering）：對象、程序不同。
6. **IPO 主管機關**：金管會（FSC），非證交所。
7. **承銷商 vs. 經紀商 vs. 自營商**（underwriter vs. broker vs. dealer）：三種證券市場中介角色。
8. 注意：**insider trading**（內線交易）為重要概念但在 104-114 年一試中**未見以獨立題型出題**，多出現在選項中作為干擾。